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California cracks down on ingredients with possible ban on snacks in public schools

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A California bill introduced Tuesday would ban public schools from serving foods containing certain artificial dyes and additives, including Doritos, Gatorade, and Welch's fruit snacks.

Foods containing Red 40, Yellow 5, Yellow 6, Blue 1, Blue 2, Green 3, and titanium dioxide would be banned under Assembly Bill 2316. The legislation was introduced by Democratic Assemblyman Jesse Gabriel.

"Basically, the companies that produce these products that are sold in schools would have a choice," Gabriel told Fox 11 Los Angeles in an interview. "They can either make minor modifications to their recipes to remove these ingredients, all of which there are strong signs showing that they can cause cancer, ADHD, and neurobehavioral issues in kids."

Common foods such as Lucky Charms, Betty Crocker's red velvet cake mix and frosting, Flamin' Hot Cheetos, and Jell-O contain the additives.

In 2007, the University of Southampton in England conducted a study showing a link between attention-deficit/hyperactivity disorder in children and Red 40. The European Food Safety Authority said the study provided "limited evidence" of the link and, due to the study limitations, "results could not be extrapolated to the general population." In 2009, the EFSA reevaluated its findings and concluded that "evidence does not substantiate a link between the color additives and behavioral effects."

In 2010, the European Union began requiring foods made with certain additives, such as Red 40 and Yellow 5 and 6, to be labeled with a warning stating the additives "may have an adverse effect on activity and attention in children."

"So they can make the decision to do what they already did in Europe and a lot of other places, which is to substitute out those harmful chemicals for safer alternatives," he said.

The Food and Drug Administration determined there may be a link with additives for "certain susceptible children" and that their "condition may be exacerbated by exposure to a number of substances in food, including, but not limited to, synthetic color additives." The FDA concluded the link may be due to certain children's intolerance to the additives that exacerbate existing behavioral conditions.

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"To me, it's a commonsense measure as somebody who struggled with ADHD growing up, who's a dad of three kids, who has a child with an ADHD diagnosis who's sometimes struggled," Gabriel said. "The idea that we would put all of this love and attention and care and therapy and support into our kids in the morning and then serve them some food at lunch that's just going to exacerbate those challenges and undo all that good work doesn't make any sense."

In October, California banned four other food additives, becoming the first state in the nation to do so.

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